

Diwan Chand Ahuja & Another v. State of U.P. & 5 Others

High Court of Judicature at Allahabad · Division Bench · 30 August 2022 · Writ-C No. 21244 of 2022 · **Writ petition dismissed. The Division Bench upheld the speaking order dated 29.06.2022 by which the licensee refused a separate (prepaid/postpaid) electricity connection to the petitioners. The word 'occupier' in Para 2.2(oo) of the U.P. Electricity Supply Code, 2005 must be read as a legal (lawful) occupier; the petitioners, whose registered lease had expired on 31.12.2021 and who had covenanted (clauses 7-9 of the lease) not to obtain any electricity connection in their own or another's name, were not in lawful occupation and had no right to a connection. The Supreme Court's decision in Dilip v. Satish (electricity as a basic amenity that cannot be denied a tenant for want of the landlord's NOC) was held distinguishable, and the refusal was found to suffer from no manifest error of law.**

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HEADNOTE

A former tenant's claim to a fresh electricity connection, refused because he was no longer a lawful occupier. The petitioners had held a flat under a registered lease dated 06.11.2017 for a fixed term of four years (01.01.2018 to 31.12.2021); clauses 7 to 9 of the lease stipulated that the tenancy would not be extended, that possession would be handed back, and that the tenants would not obtain any permanent, temporary, postpaid or prepaid electricity connection in their own name or in the name of any other person. After the lease expired, petitioner no.1 applied (with his son's consent) for a separate connection; the licensee refused by a speaking order dated 29.06.2022, and the landlord had separately sued (Original Suit No.46 of 2022) to restrain any such connection. The petitioners invoked Dilip (Dead) through LRs v. Satish, 2022 LiveLaw (SC) 570, for the proposition that electricity is a basic amenity that cannot be denied to a tenant for the landlord's failure to give an NOC, the authority needing only to examine occupation. The Division Bench dismissed the petition. The word 'occupier' in Para 2.2(oo) of the U.P. Electricity Supply Code, 2005 ('the owner or authorized person in occupation of the premises') cannot be read merely as an occupier but must be read as a legal occupier; the petitioners' rights rested entirely on the expired lease, under which they had no right to occupy or to obtain a connection, so they were not in lawful occupation and did not fall within Para 2.2(oo). Dilip was distinguishable — it concerned fabrication of a landlord's NOC, whereas here it was admitted that the tenancy had expired and the essential condition of lawful occupation was not fulfilled — the basic-amenity principle presupposing (lawful) occupation. The refusal by the speaking order dated 29.06.2022 therefore disclosed no manifest error of law.

FACTUAL SUMMARY

The petitioners, Diwan Chand Ahuja and his son, occupied Flat No. S2, Second Floor, House No. 117/H-1/185 and 185A, Pandu Nagar, Kanpur Nagar under a registered lease deed dated 06.11.2017. The lease was for a fixed term of four years, from 01.01.2018 to 31.12.2021. Clauses 7, 8 and 9 of the registered lease provided that the tenancy was only for four years and would not be extended, that the tenants would hand over physical possession of the flat to the landlord, and that the tenants would not, in their own name or in the name of any other person, obtain any permanent, temporary, postpaid or prepaid electricity connection. After the tenancy expired, petitioner no.1 applied on 08.01.2022 (with the consent of petitioner no.2, his son) for a separate postpaid connection, followed by an indemnity bond dated 14.06.2022. The licensee (respondent no.4, Kanpur Electricity Supply Company Ltd.) refused by a speaking order dated 29.06.2022. The landlord (respondent no.5) had instituted Original Suit No.46 of 2022 (Smt. Darshan Arora v. KESCo) with a specific prayer to restrain any separate connection to the petitioners in the flat. The petitioners' writ sought certiorari to quash the order of 29.06.2022 and mandamus to direct a prepaid connection to petitioner no.1, relying on Dilip v. Satish. The Division Bench (Hon'ble Surya Prakash Kesarwani, J. and Hon'ble Saurabh Srivastava, J.) heard the petitioners, the State, the licensee-respondents (nos. 2-4) and the private respondents (nos. 5-6), and dismissed the petition on 30.8.2022.

REUSABLE CONSTRUCTIONS

1. The word 'occupier' in Para 2.2(oo) of the U.P. Electricity Supply Code, 2005 ('the owner or authorized person in occupation of the premises') means a legal (lawful) occupier; a person whose occupation is not lawful is not an 'occupier' entitled to a new connection. ¶ 12
2. A former tenant whose registered lease has expired (and who is bound to hand over possession) is not in lawful occupation and cannot claim an electricity connection as an 'occupier' — the more so where the lease expressly bars

the tenant from obtaining any permanent, temporary, postpaid or prepaid connection in his own or any other name.

¶ 13

3. The principle that electricity is a basic amenity which cannot be denied to a tenant merely for want of the landlord's no-objection certificate (Dilip v. Satish) presupposes that the applicant is in lawful occupation of the premises; it does not assist a person whose tenancy has expired and who is not in lawful occupation. ¶ 11
4. A speaking order refusing a connection to a person who is not a legal occupier discloses no manifest error of law and will not be interfered with in writ jurisdiction. ¶ 13

HOLDING-UNITS

HOLDING-UNIT · UP-2005::2.2(oo)

RATIO

'Occupier' in the Code means a legal occupier; an ex-tenant with an expired lease (covenanted not to take a connection) is not an occupier entitled to a connection

QUESTION

Does the word 'occupier' in Para 2.2(oo) of the U.P. Electricity Supply Code, 2005 include a former tenant whose registered lease has expired and who, by that lease, has covenanted not to obtain any electricity connection — so as to entitle him to a new connection?

HOLDING

No. The word 'occupier' in Para 2.2(oo) cannot be read merely as an occupier but must be read as a legal (lawful) occupier. The petitioners' entire rights rested on the registered lease dated 06.11.2017, under which the tenancy expired on 31.12.2021, possession was to be handed back, and the tenants had covenanted not to obtain any permanent, temporary, postpaid or prepaid connection in their own or any other name. They therefore had no right to occupy or to obtain a connection and could not be said to be in lawful occupation, so their case did not fall within Para 2.2(oo). The speaking order dated 29.06.2022 refusing the connection accordingly disclosed no manifest error of law. ¶ 11-13

EVIDENCE “The word ‘occupier’ mentioned in Para 2.2 of the Code 2005, cannot be read merely as an occupier but it has to be read as legal occupier and as such, the case of the petitioner does not fall under the category of Para 2.2 of the Code 2005.” ¶ 12

EVIDENCE “the petitioners have no right to obtain electricity connection in the flat in question either in their own name or in the name of any other person.” ¶ 13

EVIDENCE “denial of electricity connection by the respondent no.4 by the impugned speaking order dated 29.06.2022, cannot be said to suffer from any manifest error of law.” ¶ 13

FLAG Clean paragraph-numbered judgment (pin_basis=paragraph); it also carries printed page numbers. Lease clauses 7-9 are reproduced in Hindi in the source (OCR-garbled) but summarised by the Court in English at para 13, which is what is quoted.

INTERPLAY · UP-2005::2.2(oo)

RATIO

The basic-amenity principle that a tenant cannot be denied a connection for want of the landlord's NOC presupposes lawful occupation and does not assist an ex-tenant

QUESTION

Does the Supreme Court's principle in Dilip v. Satish — that electricity is a basic amenity that cannot be declined to a tenant for the landlord's failure/refusal to issue an NOC, the authority needing only to examine occupation — entitle a person whose tenancy has expired to a new connection?

HOLDING

No. Dilip is distinguishable on the facts. That case concerned the fabrication of a landlord's no-objection certificate, on which an FIR was lodged; here it is an admitted position that the tenancy had already expired on 31.12.2021 and that the essential condition for a valid electricity connection was not fulfilled. The touchstone under Dilip is whether the applicant is in occupation of the premises, and that occupation must be lawful; the petitioners, being ex-tenants not in lawful occupation, cannot invoke the basic-amenity principle to compel a connection. ¶ 8, 11-13

EVIDENCE “The judgment of Hon'ble the Apex Court relied by learned counsel for the petitioners is distinguishable on facts of the present case.” ¶ 11

EVIDENCE “they cannot be said to be in lawful occupation of the flat in question.” ¶ 13

FLAG Distinguishing of a Supreme Court authority, keyed to the same Para 2.2(oo) 'occupier' concept it engages; the Court did not cite Section 43 of the Electricity Act, 2003 (the statutory home of the Dilip line) — it decided on the Code's occupier definition.

PRINCIPLE TAGS

occupier-must-be-authorised 'Occupier' in Para 2.2(oo) of the Code means a legal/authorized occupier; an ex-tenant whose lease has expired and who covenanted not to take a connection is not an occupier and cannot claim a connection. ¶ 12-13

landlord-noc-refusal-in-dispute-no-bar-to-tenant-connection The Dilip v. Satish principle (no landlord NOC needed; authority examines only occupation) was distinguished here — it presupposes lawful occupation, which was absent because the tenancy had expired; so it did not bar the licensee's refusal. Lead authorities: *Dilip (Dead) through Lrs. v. Satish and others*. ¶ 8, 11

lease-covenant-barring-connection-defeats-tenant-claim The registered lease's express covenant (clause 9) that the tenants shall not obtain any permanent/temporary/postpaid/prepaid connection, together with expiry of the tenancy, defeated the claim to a connection. ¶ 13

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — THE RIGHTS OF THE PARTIES IN THE PENDING ORIGINAL SUIT NO.46 OF 2022 (SMT. DARSHAN ARORA V. KESCO) CONCERNING A SEPARATE CONNECTION TO THE PETITIONERS

Noted as a fact; the writ court did not adjudicate the civil suit, deciding only the challenge to the speaking order dated 29.06.2022.

¶ 7

RELATED CASES — SEE ALSO

SCJ-1271 — The other SCJ case turning on the Para 2.2(oo) definition of 'occupier'.

SCJ-021 — Occupier must be authorised: a connection refused where lawful occupier status was not established — the same requirement applied here.

SCJ-293 — Landlord/tenant connection dispute; writ dismissed — companion on the limits of a tenant's claim to a connection.

SCJ-601 — Contrast: reconnection to a genuine occupier on an indemnity bond upheld, whereas here the ex-tenant was not a lawful occupier.

SCJ-033 — Contrast: an occupier held entitled to a connection on an indemnity bond and the refusal set aside — the qualifying lawful occupier the petitioners here were not.

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Dilip (Dead) through Lrs. v. Satish and others</i> 2022 LiveLaw (SC) 570 Supreme Court of India	Electricity is a basic amenity of which a person cannot be deprived; it cannot be declined to a tenant on the ground of the landlord's failure/refusal to issue a no-objection certificate, all that the supply authority is required to examine being whether the applicant is in occupation of the premises.	Distinguished ¶ 11	Petitioner	Distinguished

SCJ-2216 · Diwan Chand Ahuja & Another v. State of U.P. & 5 Others · · Supply Code Jurisprudence

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.